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CASE #	CASE NAME	HEARING NAME
CVPS2406358	GARCIA MARTINEZ vs TOYOTA MOTOR SALES, U.S.A., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL

Tentative Ruling:

Matter to be taken under submission

4.

CASE #	CASE NAME	HEARING NAME
CVRI2401589	VELASCO vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Summary of Ruling:

The Court Overrules Plaintiffs' Evidentiary Objection Nos. 1-3 as to the Declaration of Soheyl Tahsildoost.

The Court Overrule Plaintiffs' Evidentiary Objection No. 1 as to the Declaration of Donna Hooper.

The Court Sustains Plaintiffs' Evidentiary Objection No. 2 as to Exhibit N attached to the Declaration of Donna Hooper.

The Court Grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs).

Factual / Procedural Context:

This Song-Beverly action arises out of Plaintiffs Nicanor Velasco and Andres Alzate Gonzalez' ("Plaintiffs") purchase of a new 2023 Hyundai Tucson ("Vehicle"), which was sold with a warranty issued by Defendant Hyundai Motor America ("Defendant"). Plaintiffs alleged that after its purchase, the Vehicle exhibited numerous serious defects and nonconformities to warranty.

Accordingly, on March 22, 2024, Plaintiffs filed a Complaint against Defendant, asserting causes of action for: (1) Violation of Song-Beverly Act – Breach of Express

Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; and (3) Violation of Song-Beverly Act Section 1793.2.

The procedural history includes Defendant's motion to compel arbitration, Plaintiffs' motion to compel further responses to their first set of discovery and notice of settlement.

Plaintiffs now move for an award of \$33,105.50 in attorney fees using the lodestar method, along with a 1.5 multiplier of \$16,552.75 and \$2,596.50 in costs, for a total award of \$52,254.75.

In opposition, Defendant argues the Court should reduce the requested award because counsel's hourly rate and expended time are unreasonably excessive. Defendant further asserts that Plaintiffs' claimed "other" costs are unsupported by any evidence and should be taxed by \$1,420.00. Accordingly, Defendant contends that the Court should not award more than \$18,717.50 in attorney fees and \$1,176.50 in costs.

In reply, Plaintiffs maintain that the attorney fees and costs are reasonable.

Evidentiary Objections

Plaintiffs object to statements in the declarations of Donna Hooper and Soheyl Tahsildoost, alleging that they constitute improper argument, inadmissible opinion, and are irrelevant. The Court overrules Evidentiary Objection Nos. 1-3 as to the Declaration of Soheyl Tahsildoost. The Court overrules Evidentiary Objection No. 1 as to the Declaration of Donna Hooper. The Court sustains Evidentiary Objection No. 2 as to Exhibit N attached to the Declaration of Donna Hooper, as it applies to a different firm and is therefore irrelevant.

Analysis

Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” Here, Plaintiffs accepted Defendant’s C.C.P. § 998 offer, which states that Plaintiffs are the prevailing party and that Defendant shall pay Plaintiffs’ attorney fees, costs, and expenses upon separate motion. (Kirnos Decl., Exh. C, ¶ 5.)

A. Attorney Fees

At issue in this motion is the reasonableness of Plaintiffs’ request. The matter of reasonableness of a party’s attorney fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all the facts and the entire procedural history of the case in setting the amount of a reasonable attorney fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

Based on the time records and Declaration of Roger Kirnos, ¶ 28, counsel spent:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Caitlin Rice, Associate Attorney	6.2	\$425.00	\$2,635.00
Jeffery Mukai, Partner	1.6	\$495.00	\$792.00
Jacob Cutler, Partner	1.1	\$550.00	\$605.00
Matias Leite, Associate Attorney	7.2	\$350.00	\$2,520.00
Phil Thomas, Associate Attorney	16.3	\$450.00	\$7,335.00
Phil Thomas, Associate Attorney	21.4	\$500.00	\$10,700.00
Roger Kirnos, Managing Partner	0.1	\$600.00	\$60.00
Zachary Powell, Senior Attorney	1.3	\$425.00	\$552.50
Stephanie Rosado, Law Clerk	26.8	\$295.00	\$7,906.00
Anticipated Fees	3.5	\$425.00	\$1,487.50
TOTAL	85.5		\$34,593.00

Here, the hourly rates do not appear to be reasonable for Riverside County. Counsel is located in Los Angeles. Plaintiffs make no showing that they could not obtain local counsel, and therefore, are entitled to out of town rates. (*Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619 (plaintiffs were entitled to Santa Monica rates for counsel when they proved they could not obtain local counsel).) Accordingly, the Court reduces the requested rates.

Next, there were nine timekeepers in this case. A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) In this case, there was one managing partner, two partners, one senior attorney, two associate attorneys, and one

law clerk. However, Plaintiffs do not explain how this routine lemon law action, which required nothing more complicated than basic discovery motions and a motion to compel arbitration, and settled via a C.C.P. § 998 offer, necessitated the higher billing rates of a partner or senior attorney. Accordingly, the attorneys' hourly rates should be reduced to that of an associate attorney.

Further, a review of the billing records reveals several instances of duplicative billing entries. For example, Law Clerk Rosado and Attorney Thomas billed a total of 49.6 hours for motions to compel further responses to Plaintiffs' first set of discovery. However, the Court previously addressed the reasonableness of the time and costs incurred in filing these motions when it denied Plaintiffs' request for sanctions on January 29, 2025, and granted Plaintiffs' request for sanctions on subsequent motions on October 28, 2025. Accordingly, the Court strikes 25.0 hours from Law Clerk Rosado's billing and 24.6 hours from Attorney Thomas' billing.

Counsel then seeks 3.5 hours in wrap-up fees to review the opposition, draft the reply, and attend the hearing on this motion. However, Attorney Rice already billed 2.7 for drafting the initial fee motion. There is no reason why such a routine fee motion should require more than 4.0 hours to draft and defend. Accordingly, the Court strikes 2.2 hours from the anticipated fees.

As for the remaining time entries, they are reasonable under the circumstances. Defendant's challenges for unnecessary/overbilled tasks, discovery, etc. are not supported. As such, the Court awards the following:

<u>Timekeeper</u>	<u>Hours</u>	<u>Rate / Hour</u>	<u>Total</u>
Caitlin Rice, Associate Attorney	6.2	\$350.00	\$2,170.00
Jeffery Mukai, Partner	1.6	\$350.00	\$560.00
Jacob Cutler, Partner	1.1	\$350.00	\$385.00
Matias Leite, Associate Attorney	7.2	\$350.00	\$2,520.00

Phil Thomas, Associate Attorney	0	\$350.00	\$0.00
Phil Thomas, Associate Attorney	13.1	\$350.00	\$4,585.00
Roger Kirnos, Managing Partner	0.1	\$350.00	\$35.00
Zachary Powell, Senior Attorney	1.3	\$350.00	\$455.00
Stephanie Rosado, Law Clerk	1.8	\$150.00	\$270.00
Anticipated Fees	1.3	\$350.00	\$455.00
TOTAL	33.7		\$11,435.00

Although Plaintiffs seek a 1.5 multiplier, the Court denies Plaintiffs' request. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no evidence supporting such an enhancement in this uncomplicated case. Specifically, there was no exceptional quality of work or skill in this case to justify a multiplier, especially as there was no complex law and motion presented in this basic lemon law case. Plaintiffs submit no evidence to show that their discovery motions or opposition to Defendant's motion to compel arbitration were anything but routine. Counsel's request based on contingency fee should already be accounted for in their hourly rate.¹ An enhancement would be merely double billing here.

B. Costs

¹ In recognition of counsel's contingency fee argument, the attorneys' reduced hourly rates were increased from \$300.00 to \$350.00 per hour.

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses.

Defendant argues that Plaintiffs failed to provide any details to support their request for \$1,426.00 in “other” costs. However, the memorandum of costs worksheet indicates these include \$1,420.00 in “attorney services and messenger court filings and service” and \$6.00 in “minute orders.” (Memo of Costs, p. 4.) Further, a “verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) Accordingly, Defendant’s argument of insufficient documentation fails.

Under the Song-Beverly Act, the Legislature intended the use of “costs and expenses” to include items excluded under C.C.P. §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Accordingly, the Court denies Defendant’s motion to strike \$1,426.00 from Plaintiffs’ requested costs.

Plaintiffs have already filed a memorandum of costs. Local Rule 1045(b) provides in pertinent part:

The entry of costs and fees shall be in accordance with the provisions of Code of Civil Procedure section 685.090, California Rules of Court rules 8.104 and 8.751 describing what constitutes entry, and any other applicable provision of law. In cases where a party is entitled to costs because a motion to tax or strike a cost memo was not brought, such costs shall be deemed entered upon the expiration of the time for making the motion.

Defendant has not filed a motion to tax; accordingly, once the time has passed, the costs are deemed a part of the judgment. Accordingly, the Court awards costs in this motion, and the Court strikes the memorandum of costs to prevent double recovery.

The Court grants Plaintiffs' motion for attorney fees and costs at the reduced amount of \$14,031.50 (\$11,435.00 attorney fees + \$2,596.50 costs). This award shall be paid within 30 days of the date of this order.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2407309	GARCIA vs AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	MOTION TO COMPEL DEPOSITION ATTENDANCE OF A PERSON MOST QUALIFIED ON CATEGORIES NOT PRODUCED BY DEFENDANT AMERICAN HONDA MOTOR CO. INC

Tentative Ruling:

Summary of Ruling: The Court denies Plaintiffs' Motion to Compel Deposition Attendance of a PMQ. The Court denies Plaintiffs' Request for Sanctions.

Factual/Procedural Context

This is a lemon law action. Plaintiffs Sergio Garcia and Nayelli Garcia ("Plaintiffs") purchased a Certified Pre-Owned 2020 Acura MDX ("Subject Vehicle"), for which Defendant American Honda Motor Co., Inc. ("AHM") provided express and implied warranties. (Sapra Decl. ¶ 2.) Plaintiffs allege that after purchase they began experiencing persistent electrical issues and issues with the Subject Vehicle's Collision Mitigation Braking System ("CMBS"), and that although Plaintiffs delivered the vehicle for repair on numerous occasions, AHM was unable to conform the vehicle to its warranties and failed to promptly repurchase or replace it as required under the Song-Beverly Act.